

Date: 3/10/2025

MEMORANDUM

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

Ref: (a) PR Number(s): REQ# N2319950694142 / ERP# 1301236905

I. BACKGROUND:

1. In considering the references, FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that, under the circumstances of the contract action, only one source is reasonably available (e.g., urgency, exclusive licensing, brand-name, or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition because only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

1. Provide a description of the item or service required, to include

a) the name of the required source or brand name

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b) the required delivery date/period of performance and

3/21/2025

c) its intended use.

THE EMERGENCY DIESEL GENERATOR IS CRITICAL TO SHIPS MISSION AND THE SAFETY OF LIFE AT SEA FOR THE CREW. THIS EQUIPMENT PROVIDES EMERGENCY ELECTRICAL POWER TO SYSTEMS VITAL TO SHIPS SAFETY IN C-4 MISSION STATUS. ADDITIONALLY, COMSCINST 4490.1 REQUIRES ONLY OEM CERTIFIED FIELD SERVICE REPRESENTATIVES AND OEM CERTIFIED PARTS BE UTILIZED TO PERFORM MAINTENANCE ON MISSION CRITICAL EQUIPMENT.

2. List the source(s) or known vendor(s) who are able to provide the above described item or service.

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III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED

ON THE FOLLOWING (select all that apply):

A. ☐ Only one responsible source (select all that apply):

1. ☒ **RESTRICTIVE RIGHTS:** the source has established proprietary rights, limited rights in data, patent rights, copyrights, or secret processes in the item or service.

a. Explain what is subject to the restrictive rights.

b. If drawings are included, who is identified as “owning” the drawings.

2. ☐ **EXCLUSIVE LICENSING AGREEMENTS:** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is **ONLY ONE** authorized distributor or technical representative for the OEM.

a. Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

b. Identify the distributor / authorized technical representative for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. (**NOTE:** *If there is more than one distributor / authorized technical representative, then use Part B – Brand Name.*)

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3. ☒ **OTHER REASON:**

a. ☒ **CRITICAL SHIP EQUIPMENT:** The required item is critical ship equipment, the failure of which poses a hazard to the ship, the crew or the environment.

i. SMS Procedure Number:

b. ☒ **STANDARDIZATION / BRAND NAME:** Per MSCs standardization initiative, only the specified make/model of the equipment/parts will satisfy the Government’s needs for additional units or replacement items.

i. Identify Make / Model Number(s): Caterpillar Model 3616B, High Displacement Marine Auxiliary Engine, 16-cylinder 60 Vee 16, GENERATOR, AC SYNCHRONOUS, 2200 KW, 480 VOLT Diesel Generator, Engine Serial Number TAK00010

ECM Serial Number 3141B179CD, Synchronous AC Generator SN: 18857-02, Model: AA274010004

ii. Identify other vessels with this Make / Model: USNS LEWIS AND CLARK, USNS RICHARD BYRD, USNS ROBERT PEARY, USNS AMELIA EARHART, USNS MATTHEW PERRY, USNS CHARLES DREW, USNS WASHINGTON CHAMBERS, USNS WILLIAM MCLEAN, USNS MEDGAR EVERS, USNS CESAR CHAVEZ

c. FORM, FIT, AND FUNCTION: Item is direct replacement parts / components for existing equipment and must be compatible in terms of form, fit, and function with existing equipment / configurations.

i. Identify Make / Model of existing equipment:

Generator side of the Emergency Diesel Generator Synchronous AC Generator SN: 18857-02, Model: AA274010004

ii. Describe how the equipment must be compatible with the existing configuration.

Model of existing equipment: Synchronous AC Generator SN: 18857-02, Model: AA274010004

d. OTHER:

4. X UNUSUAL AND COMPELLING URGENCY: The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits. Urgent requirements are supplies or services that will result in work stoppage, or are mission critical and the routine processing time would injure the Government. The determination that the procurement for the above is an urgent and compelling requirement is based on the following:

a. Date on which the requirement was identified: 1 MAR 2025

b. Required delivery date / Period of Performance: 3/21/2025

c. If the difference between a. and b. is more than one week, explain the delay in submitting the requirement.

Requirement was determined during operation of vessels. The vessel is operational, and EDG FY25 maintenance service and materials are required to perform 7.5 year periodic maintenance EDG equipment suite.

d. Estimated production lead time: 1 week

e. Explanation of why delivery / commencement of services by the date required is needed: (explain the impact to the mission, any special circumstances or conditions, etc.)

Military Sealift Command Safety Management System Procedure Number: 10.6-002-ALL requires the use of OEM certified parts and OEM certified field serviced technicians in performance of all maintenance actions. The Emergency Diesel Generator is critical to ships